



DEPARTMENT OF NATURAL RESOURCES

Oil and Gas Conservation Commission

WELL CATEGORY DETERMINATION PROCEDURES

2 CCR 404-3

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1. Definitions.

"COMMISSION" shall mean the Colorado Oil and Gas Conservation Commission.

"FERC" means the Federal Energy Regulatory Commission.

"FERC RULES" means the rules and regulations adopted by FERC to implement the NGPA.

"NGPA" means the Natural Gas Policy Act of 1978 and as that act may subsequently be amended or superseded by subsequent legislation of Congress.

"APPLICANT" shall mean the person filing an application for a well category determination with the Commission.

"APPLICATION" shall mean a written request for a well category determination.

2. An applicant requesting the classification of a well producing natural gas, pursuant to the provisions of the FERC rules, shall initiate the process by filing one (1) copy of a verified application with the Commission for such a determination which shall include, but not be limited to, the following:

(a) FERC Form 121

(b) One or more of the following Oil and Gas Conservation Commission forms, whichever is appropriate:

OGCC Form 102-A, New Natural Gas Determination (2.5 mile Rule)

OGCC Form 102-B, New Natural Gas Determination (1000' Rule)

OGCC Form 102-C, New Natural Gas Determination (New Reservoir Rule)

OGCC Form 103, New Production Well Determination

OGCC Form 107, High Cost Natural Gas Determination

OGCC Form 108-A, Stripper Well Natural Gas Determination

OGCC Form 108-B, Stripper Well Natural Gas Determination (Enhanced Recovery)

OGCC Form 108-C, Stripper Well Natural Gas Determination (Seasonally Affected)

(c) A filing fee of \$50.00 for each well determination.

The applicant shall, at the same time, notify the purchasers and all other working interest owners of such filing. If more than one category determination is being requested as to a single well, separate applications for each determination must be filed. The application, upon filing, shall be given a filing number and a receipt of filing shall be provided to the applicant.

Applications containing logs of exploratory or wildcat wells marked "confidential" by the Director, upon request of the operator, shall be kept confidential for six (6) months after the initial filing with the Commission, unless the operator gives written permission to release such logs at an earlier date.

3. Determinations will be made by the staff of the Commission on the basis of the information contained in the application and the official records of the Commission. Any additional information shall be requested by the Commission if found to be necessary in order to make the proper determination. Final consideration of the determination shall be given by the Commission at a hearing.
4. Hearings before the Commission to give final consideration to the determinations shall be on the regular scheduled hearing dates, Notice of such hearings and proceedings before the Commission shall be given to the applicant, purchasers and any protestants of record by mailing a copy thereof, postage prepaid.

In addition, the Commission shall cause one (1) publication of such notice, at least ten (10) days prior to the hearing, in a newspaper of general circulation in the city and county of Denver. Any interested person desiring to protest the granting of a determination shall file a written protest with the Commission prior to the date of the hearing, setting forth the basis of the protest, and shall, at the same time, serve a copy of the protest on the applicant by mailing a copy thereof, postage prepaid. A fee of twenty-five dollars (\$25.00) shall accompany the written protest filed with the Commission.

Determinations that are not contested shall be considered and approved at the hearing by the Commission based upon the recommendations of the Director without further evidence. Protested matters will be determined by the Commission after testimony from interested parties is received at a hearing. Whenever appropriate, one (1) order will be issued listing all determinations approved by the Commission at a hearing.

5. Applications filed prior to the adoption of the rules herein, shall be acceptable provided they have met the minimum requirements of FERC rules and regulations.
6. The Commission shall give written notice of the determination to FERC in accordance with FERC rules, with a copy of such notice to the applicant and any protestant.
7. All other rules and regulations of the Commission not in conflict with these rules shall remain in force and effect.

Editor's Notes

History

Entire rule eff. 04/30/1979.